

सत्यमेव जयते

The Special Criminal Courts (Jurisdiction) Act, 1950

(ACT NO. 18 OF 1950)

[*As on the 11th May, 2025*]

IndiaCode

LIST OF ABBREVIATIONS USED

S.R.O.	"	Statutory Rule and Order.
Notifn.	,,	Notification.
A.O.	"	Adaptation of Laws Order.

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THE SPECIAL CRIMINAL COURTS (JURISDICTION) ACT, 1950

ARRANGEMENT OF SECTIONS

SECTIONS

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3. Jurisdiction of special criminal courts to try offences with respect to matters in the Union List.
4. Power to add to Schedule.
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THE SCHEDULE.

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THE SPECIAL CRIMINAL COURTS (JURISDICTION) ACT, 1950

ACT NO. 18 OF 1950

[10*th March,* 1950.]

An Act to confer upon special criminal courts, constituted by or under certain State laws, jurisdiction to try offences against laws with respect to any of the matters enumerated in the Union List.

BE it enacted by Parliament as follows:—

1. Short title and extent.—(*1*) This Act may be called the Special Criminal Courts (Jurisdiction) Act, 1950.

(*2*) It extends to the whole of India except [1][the territories which, immediately before the 1st November, 1956, were comprised in Part B States].

2. Definition.—In this Act, "special criminal court" means any special court of criminal jurisdiction constituted by or under any law included in the Schedule.

3. Jurisdiction of special criminal courts to try offences with respect to matters in the Union List.—Notwithstanding anything contained in any law for the time being in force, it shall be lawful for any special criminal court to try offences against laws with respect to any of the matters enumerated in List I in the Seventh Schedule to the Constitution, if such court is otherwise competent to try such offence under the law constituting it.

4. Power to add to Schedule.—The Central Government may, by notification in the Official Gazette, add to the Schedule any other State law providing for the trial of offences by special criminal courts, and any such addition shall take effect as if such law had been included in the Schedule by this Act.

5. Repeal of Ordinance VII of 1950.—(*1*) The Special Criminal Courts (Jurisdiction) Ordinance, 1950 (7 of 1950) is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been done or taken in the exercise of the powers conferred by or under this Act, as if this Act were in force on the day on which such thing was done or action was taken.

1. Subs. by the A.O. (No. 3), 1956, for "Part B States".

THE SCHEDULE

(*See* section 2)

Year	No.	Short title
1947	6	The Bombay Public Security Measures Act, 1947.
1948	62	The Central Provinces and Berar Public Safety Act, 1948.
1949	3	The West Bengal Special Courts Ordinance, 1949.
[1][1950	10	The West Bengal Special Courts Act, 1950.]
[2][1950	19	The Assam Special Courts Act, 1950.]
[3][1949	21	The West Bengal Criminal Law Amendment (Special Courts) Act, 1949.]
[4][1952	1	The Tribunals of Criminal Jurisdiction Ordinance, 952 (West Bengal Ordinance. (1 of 1952).]

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1. Ins. by Notifn. No. S.R.O. 12, dated 18th April, 1950, *see* Gazette of India, Part II, s. 3.
2. Ins. by Notifn. No. S.R.O. 29, dated 29th April, 1950, *see* Gazette of India, Part II, s. 3.
3. Ins. by Notifn. No. S.R.O. 117, dated 6th April, 1949, *see* Gazette of India, Part II, s. 3.
4. Ins. by Notifn. No. S.R.O. 672, dated 15th April, 1952, *see* Gazette of India, Part II, s. 3.

STATEMENT OF OBJECTS AND REASONS

With a view to speeding up to trial of certain offences against the public safety, Special Courts of criminal jurisdiction have been set up in some of the States under the State laws. These courts had no jurisdiction to try offences relating to matters enumerated in the Federal legislative List under the Seventh Schedule to the Government of India Act, 1935; and, in order to confer upon them such jurisdiction, the Special Criminal Courts (Jurisdiction) Ordinance, 1950 (VII of 1950) was promulgated on the 21st January, 1950. The Ordinance will cease to operate in due course and the present Bill seeks to replace it, with changes consequent on the Constitution, by an Act of parliament.

NEW DELHI; V.J. PATEL.
The 14*th February*, 1950.

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